

Domestic Violence suit

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1. Pre-Suit Stage

1.1 Legal Notice / Initial Report :

A domestic violence case doesn't usually start with a formal legal notice the way a civil suit does. Instead, the aggrieved person reports the matter directly — either to the nearest **Women Protection Officer (WPO)**, a **Violence Against Women Centre (VAWC)**, or by calling the **Punjab Women Protection Authority helpline, 1043**. She can also go straight to court with a written application. If the violence involves physical assault, hurt, or sexual violence, an **FIR under the Pakistan Penal Code, 1860**, can be registered in parallel through the police, under the **Code of Criminal Procedure, 1898**.

1.2 Limitation Period:

There's no strict limitation period like you'd find in the Limitation Act, 1908. Since this law is meant to protect people from ongoing harm, an application can be filed at any point violence occurs — even if it's been going on for a while. That said, if there's a long unexplained delay in reporting, it can weaken the case somewhat, so it's better to act as soon as possible.

1.3 Alternative Dispute Resolution (ADR) :

The District Women Protection Committee can offer counselling or facilitate reconciliation, but only if the aggrieved person agrees to it. Nobody can be pressured into a compromise, especially in cases of repeated or serious abuse — the law is clear that her safety comes first.

2. Pre-Trial

2.1 Application/Complaint :

The aggrieved person (or the Protection Officer, acting for her) files an application before the **Family Court**, which has jurisdiction under this Act. She can ask for one or more of these reliefs:

- **Interim Order** (Section 15) — immediate, temporary protection
- **Protection Order** (Section 16) — no contact, staying away, surrender of weapons
- **Residence Order** (Section 17) — right to stay in the shared home
- **Monetary Order** (Section 18) — maintenance or compensation

2.2 Reply of Defendant :

The court sends notice to the accused, who must respond. If he doesn't show up, the court isn't stuck waiting — it can pass orders even ex-parte to make sure the victim gets protection without delay.

2.3 Framing of Issues:

Before evidence starts, the court identifies exactly what's in dispute — did the violence happen, how serious was it, what's the relationship between the parties, and what relief is actually warranted.

3. Trial

Trials under this Act are meant to move fast — it's a **summary trial process** (Section 21), with the law aiming for disposal within about 90 days. That's a big shift from how slow regular civil suits can be.

3.1 Evidence Presentation

3.1.1 Aggrieved Person's Evidence and Cross-Examination: She presents her statement along with any supporting evidence — witnesses, medical reports, forensic material collected by the Protection Officer, photos, messages, medico-legal certificates. The defendant's lawyer gets to cross-examine.

3.1.2 Defendant's Evidence and Cross-Examination: The defendant then presents his side and witnesses, and the aggrieved person's lawyer cross-examines in turn.

3.2 Final Arguments:

Both sides sum up their case before the judge.

3.3 Judgment and Order The court decides — granting, adjusting, or refusing the order sought. If the facts also point to a criminal offence under the PPC, that can be pursued separately or referred on.

4. Post-Trial

4.1 Execution Orders here aren't just paperwork — police and the Protection Officer are legally bound to help enforce them (Section 25). And importantly, **violating a Protection or Residence Order is itself a crime** (Section 24), carrying imprisonment and/or a fine. That's what gives these orders real teeth compared to a typical civil decree.

4.2 Appeal Either party can appeal within **30 days** to the Sessions Court/appellate forum designated under Section 28. That decision is generally final, though the High Court's constitutional jurisdiction remains available in exceptional cases.
